
How Does Stephen Miller Keep Getting Away With This?

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[Sign up for the Surge](#), the newsletter that covers most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, typing to you from underneath a sooty, icy snow boulder that has covered the entirety of D.C. for a week. But we're not mad. Stop saying we're mad.

Much of the week's news revolved around the killing of protester Alex Prett in Minneapolis and Republicans' scrambling to limit the fallout. As the week went on, we got a new Fed chair announcement, Tulsi Gabbard showing up at an FBI raid in Georgia, and what appears to be a long weekend government shutdown? Don Lemon, [you](#) will have to wait until next week, sorry. If only the Surge could control the flow and spacing of news events, the world would run a lot smoother.

Let's begin with the Cabinet member bearing most of the blame for the events of Minnesota.

1.

Kristi Noem

So close, and yet so far away, from a Cabinet firing.

The lack of turnover in the second Trump administration has been a marked difference from the first term. Top staff and Cabinet members aren't getting axed left and right. The only high-level change we've seen has been former national security adviser Mike Waltz getting "demoted" to United Nations ambassador for getting [slippery-fingered](#) with his group chat invites. There's a reason for this shift: President Donald Trump, as he [reportedly](#) felt during the deliberations over Waltz's future, doesn't want to give the liberal media a "scalp." It's a sign of *weakness* to, uh, provide accountability following screw-ups.

Department of Homeland Security Secretary Kristi Noem this week seemed to come the closest a Cabinet official has come to a Trump axing this term. The administration flinched from its initial (and typical) belligerent messaging following the Customs and Border Protection killing of Prett in Minneapolis. That left Noem out on a limb. It was Noem, after all, whose department oversaw the Minneapolis operation and Noem who, as the face of that department, [said](#) in the press conference afterward that Prett was a "domestic terrorist." Democratic calls for her impeachment shot through the roof—and even some Republicans called on her to step down, as well. (More on that later.) Noem met with the president for [two hours](#) Monday night to plead her case. For now, it looks like Trump's instincts not to give the media a "scalp" are winning out. Or, as with Waltz, he's just waiting a spell for the fires to calm down before sending her on her way.

2.

Stephen Miller

Sorry if it's a dumb question, but how about some consequences for this guy?

Noem wasn't the only administration official rushing to call Pretti a "domestic terrorist." White House policy chief and all-around architect of heavy-handedness Stephen Miller also called Pretti [that, as well as](#) an "assassin" looking to "murder" agents. Team Noem, in its effort to save her, went [running to Axios](#) to blame Miller for the incendiary language. We fully believe her. Immediately calling someone an "assassin" or "terrorist" without knowing much information is Miller's M.O., and Miller is [more powerful](#) than Noem. Of course the administration's ludicrous initial response was his handiwork.

Miller, however, is a master at deflecting consequences when his own aggressive policy views put the administration in hot water. During the outrage over family separation during Trump's first term, then-DHS Secretary Kirstjen Nielsen lost her job while Miller mysteriously kept his, as journalist Jonathan Blitzer [pointed out](#). Amid the Minnesota outrage, Noem is the Cabinet official in trouble, Border Patrol "commander" Greg Bovino was schlepped back to rural California to await his retirement, while Miller continues to run administration policy. Sen. Lindsey Graham, for better or worse, summed up Miller's job security accurately on Fox News this week. "To my colleagues who believe that you can convince Donald Trump that Stephen Miller is a liability for him, good luck with that," he [said](#). "When this clock strikes 12 on the Trump era, there will be a few people walking out the door with Donald Trump. Stephen Miller will be in that group."

3.

Chuck Schumer

A two-week sprint to reform ICE.

After the Pretti killing, Senate Democratic leader Chuck Schumer took the position that Democrats [wouldn't advance](#) a bill funding DHS without new reforms to immigration enforcement. The DHS funding was supposed to be included in a package with five other departmental funding bills and voted on this week, before a Friday night deadline. Schumer and Democrats demanded Republicans strip the DHS funding portion from the package, pass the other five, and buy a little time to work on DHS reforms. After a few days of talks, Senate Republicans and the White House ... [agreed](#) to this! As we type, the Senate is slowly processing this agreement. (That's Senate shorthand for [waiting out a Lindsey Graham hissy fit](#).) Once they're done, the House is expected to vote on the deal Monday. So there may be a wee technical funding gap for a few days, but nothing to write home about.

The deal extends DHS funding for only two weeks, setting up a sprint to legislate on the most contentious issue in politics. Schumer, with feedback from his caucus, has settled on three demands: ending roving patrols by ICE while tightening warrant rules, establishing a universal code of conduct governing federal law enforcement officers' use of force, and barring officers from wearing masks while requiring them to turn on bodycams and have proper identification. These

demands will run into issues from both directions. Progressives will (and are) chastising Democrats for asking for too little at a time when Republicans are reeling on this issue. And if DHS funding negotiations are going to be reopened, Republicans will put together their own series of requests targeting, for example, sanctuary cities. This won't be easy.

4.

Kevin Warsh

Is this “regime change” at the Fed?

Trump announced Friday morning that he would nominate financier Kevin Warsh to replace Jay Powell as chairman of the Federal Reserve once Powell's term ends in mid-May. Is this good? At least Trump picked someone from the requisite profession instead of a money-related figure from TV, such as Fox Business' Maria Bartiromo or pro wrestling's Ted “Million Dollar Man” DiBiase. Warsh served on the Fed Board from 2006 to 2011 and worked closely with then-Chair Ben Bernanke during the financial crisis. He was Trump's runner-up for the chairmanship in 2017, losing out to Powell. On another note, Warsh's father-in-law is Ron Lauder, the cosmetics magnate and GOP donor [responsible](#) for putting the idea of annexing Greenland into Trump's head.

If and when he is confirmed, the question will be to what extent he separates himself from the debasement he deployed to earn the job. Warsh was known for his hawkish monetary policy views following the 2008 financial crisis, worrying that lower interest rates then would cause inflation. (He was quite wrong about that.) But then he wanted to become Fed chair, and so his views have conveniently evolved. In a July [interview](#), he described the Fed's “hesitancy to cut rates” as a “mark against them” and added, “One of the reasons why the president, I think, is right to be pushing the Fed publicly is we need regime change in the conduct of policy.” Was he saying what he needed to say to get the job, or does he intend to make interest rate decisions at the president's urging?

5.

Tulsi Gabbard

Who's in Atlanta doing what now?

The FBI [raided](#) an election center in Fulton County, Georgia, on Wednesday because Donald Trump is out of his mind, and his political appointees will do whatever it takes to make him happy. The raid is related to Trump's dangerous psychological holdup that he won the 2020 election, as well as a means of revenge against Fulton County for prosecuting him. And so a dozen or so agents dug around to search for “physical ballots from the 2020 general election,” per the warrant. If only this were all a joke. As Slate contributor Rick Hasen [writes](#), the raid could be “a test run for messing with election administrators and the counting of ballots in the midterm elections in 2026.” Democratic

lawyers may want to consider ramping up their strength training ahead of the fall season.

The most hallucinatory part of the raid, though, may have been the presence of Director of National Intelligence Tulsi Gabbard at the scene. It had seemed as if Gabbard was mothballed since the administration took its turning toward bombing, or threatening the further bombing of, various countries. As the Wall Street Journal [reported](#), though, Gabbard “has spent months investigating the results of the 2020 election” and is “leading the administration’s effort to re-examine the election and look for potential crimes.” This is dark stuff. Playing gumshoe on conspiracy theories surrounding past domestic elections is not in the purview of the DNI’s office, and also, Gabbard is cuckoo for Cocoa Puffs. Whatever report she reduces should, then, be laughable. The election-related executive orders it prompts Trump to release won’t be.

6.

Thom Tillis

Which adviser is telling Trump to call you a “loser”?

As we noted here a [couple of weeks ago](#), retiring North Carolina Sen. Thom Tillis has been hammering Trump policy of late but has been loath to directly criticize the president himself. Tillis issued a blockade of Trump’s nominees to the Federal Reserve once Fed Chair Jay Powell announced he was under investigation, and he called the administration’s pursuit of annexing Greenland “stupid.” In both cases, he laid blame on Trump’s staff for giving him bad advice, rather than on the president for having a bad brain that thinks bad thoughts. Tillis came out firing again this week over the administration’s handling of the Pretti killing, calling for the firing of Kristi Noem. “I think what she’s done in Minnesota should be disqualifying,” Tillis told [reporters](#). Once again, though, he framed it in a way that absolved Trump: “It’s just amateurish. It’s terrible. It’s making the president look bad.”

So how does the president feel about this approach that Tillis has taken? Is he fooled by Tillis calling all of his administration’s policies stupid but saying it’s the advisers’ fault? “Well, they’re both losers,” Trump [told](#) ABC News on Wednesday of Tillis and Alaska Sen. Lisa Murkowski, who had also called on Noem to resign. “You know, what can I tell you? They’re terrible senators. One is gone and the other should be gone.” Tillis’ [response](#) to being called a “loser” was, at least, clever. “I am thrilled about that. That makes me qualified to be homeland security secretary and senior adviser to the president,” referring to Noem and Stephen Miller, whom Tillis also despises. He is getting closer each week to blaming the person who continues to employ these chuckleheads and, thus, is responsible for them. Will he one day cross that line?

7.

Ilhan Omar

Well, that happened.

On Tuesday night, Minnesota Rep. Ilhan Omar was speaking at a district event when a man stood up, squirted her with some sort of liquid, and then was tackled to the ground and restrained by Omar's security detail. Despite members of her team saying she should end her appearance to have tests of the liquid done, Omar insisted on continuing. The assailant, identified as Anthony Kazmierczak, had the sort of online posting history that you would expect and had told a neighbor that he might be arrested at an upcoming Omar event. He was charged with assault, and the liquid was determined to be apple cider vinegar and water. This [story about his life](#) is sad.

Omar was [direct](#) in pinning blame for the incident. "What the facts have shown since I've gotten into elected office," she said Wednesday, "is that every time the president of the United States has chosen to use hateful rhetoric to talk about me and the community that I represent, my death threats skyrocket." Indeed, Trump has [directed years](#) of racist invective toward Ilhan Omar, all of which has taken on a new acuity as the administration targets the Minnesota Somali community in general. The incident did not prompt a change of heart in Trump's rhetoric toward Omar. "I think she's a fraud," he [told](#) ABC News. "I really don't think about that. She probably had herself sprayed, knowing her."

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